



May 10, 2023

Office of Governor Ron DeSantis
State of Florida
The Capitol
400 S. Monroe St.
Tallahassee, FL 32399-0001

RE: VETO REQUEST – SB 262

Dear Governor DeSantis:

We write to respectfully request that you **VETO SB 262**.¹ Significant and material changes to the bill's terms were made in the last 48 hours of Florida's legislative session, giving interested stakeholders virtually no time to weigh in on these substantive edits prior to the bill's passage. As a result, several economy-threatening issues remain in the bill, both in terms of internal inconsistencies and specific provisions that are severely misaligned with privacy requirements in other states. If SB 262 were to be enacted, Florida would become the most unfriendly state to businesses in the nation, surpassing even the onerous requirements of California's privacy law.

As drafted, SB 262 includes provisions that would significantly hinder Florida small businesses from remaining viable and severely limit Floridians' access to relevant content, information, and services online. **Although the bill applies to “controllers” that make in excess of \$1 billion in global gross revenues per year and meet certain data processing thresholds or offer certain IoT devices, small businesses that rely on those controllers to reach audiences for their products and services would be cut off from access to potential customers if SB 262 becomes law.** Florida should not enact a bill that would destroy small and mid-sized businesses' ability to connect with consumers and compete with the economy's largest players.

While we agree that Floridians deserve meaningful privacy protections supported by responsible industry policies, SB 262 would decimate Florida's vibrant business community and create significant hurdles for state residents to access relevant offerings and information online. We urge you to **veto SB 152**.

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¹ Florida SB 262 (Gen. Sess. 2023), located [here](#).



Thank you for your consideration of this request.

Sincerely,

Christopher Oswald
EVP for Law, Ethics & Govt. Relations
Association of National Advertisers
202-296-1883

Alison Pepper
Executive Vice President, Government Relations
American Association of Advertising Agencies, 4A's
202-355-4564

Lartase Tiffith
Executive Vice President for Public Policy
Interactive Advertising Bureau
212-380-4700

Clark Rector
Executive VP-Government Affairs
American Advertising Federation
202-898-0089

Lou Mastria, CIPP, CISSP
Executive Director
Digital Advertising Alliance
347-770-0322